Mutual Non-Disclosure Agreement

Fontara, Inc. | Sample document for the Docusign eSignature REST API

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into between Fontara, Inc. ("Fontara") and the party signing below (the "Recipient"), effective on the date of signature.

1. Confidential Information.
"Confidential Information" means any non-public business, technical or financial information that one party discloses to the other, in any form, that is marked as confidential or would reasonably be understood to be confidential.

2. Obligations.
The Recipient will use the Confidential Information only to evaluate a business relationship with Fontara, will not disclose it to any third party without Fontara's written consent, and will protect it with at least reasonable care.

3. Exclusions.
These obligations do not apply to information that is or becomes public through no fault of the Recipient, was already known to the Recipient, or is independently developed without use of the Confidential Information.

4. Term.
This Agreement remains in effect for two years from the date of signature. The obligations in section 2 survive for three years after it ends.

5. Return of Materials.
On Fontara's request, the Recipient will promptly return or destroy all Confidential Information in its possession.

Signed for the Recipient

Signature

Date

Name

Sample document only. Not a real agreement. Sent from a Docusign developer account, where nothing is legally binding.